

PLSC 476: Empirical Legal Studies

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Public Opinion's Influence

Two Things:

1. *General* association between public opinion (“mood”) and SCOTUS *voting*
2. *Issue-specific* association between opinion about and voting in cases involving *abortion*

Three Goals:

- Assess the public opinion → SCOTUS votes connection
- Consider whether it varies in reversals vs. affirmances
- Consider public opinion's influence in a narrower, more specific issue (here, abortion)

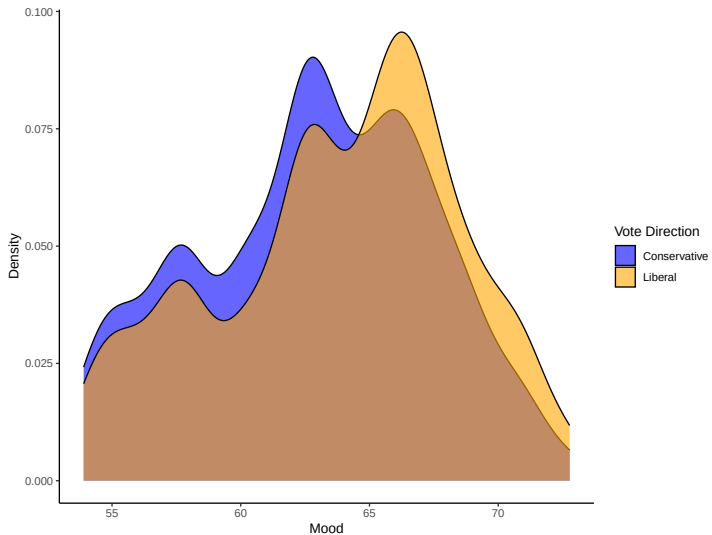
Data sources:

- Supreme Court Database for justices' votes
- Segal-Cover ideology measures
- Stimson's *Public Mood* (and *Abortion Mood*) Databases

```
> describe(DF[v])
```

	vars	n	mean	sd	median	trimmed	mad	min	max	range	skew	kurtosis	se
Mood	1	84307	63.32	4.64	63.9	63.44	4.7	53.9	72.8	18.9	-0.24	-0.75	0.02
AbMood	2	56180	64.12	2.87	64.2	64.14	3.4	58.8	70.1	11.2	-0.12	-0.74	0.01
LibVote	3	84307	0.52	0.50	1.0	0.53	0.0	0.0	1.0	1.0	-0.09	-1.99	0.00
Ideology	4	84108	48.80	32.88	50.0	48.13	41.5	0.0	100.0	100.0	0.12	-1.36	0.11
Reversal	5	84298	0.66	0.47	1.0	0.70	0.0	0.0	1.0	1.0	-0.66	-1.57	0.00

Differences?



Bivariate Relationship

```
> with(DF, t.test(Mood~LibVote))
```

Welch Two Sample t-test

data: Mood by LibVote

t = -28, df = 84000, p-value <2e-16

alternative hypothesis: true difference in means between
group 0 and group 1 is not equal to 0

95 percent confidence interval:

-0.954 -0.829

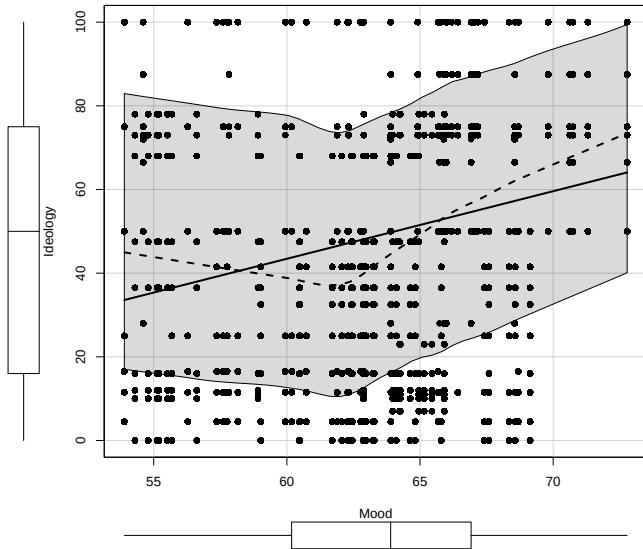
sample estimates:

mean in group 0 mean in group 1

62.9

63.7

Ideology and Public Opinion



A Regression

```
> fitOLS<-lm(LibVote~Ideology+Mood,data=DF)
> summary(fitOLS)
```

Call:

```
lm(formula = LibVote ~ Ideology + Mood, data = DF)
```

Residuals:

Min	1Q	Median	3Q	Max
-0.741	-0.469	0.287	0.447	0.685

Coefficients:

	Estimate	Std. Error	t value	Pr(> t)
(Intercept)	0.0491668	0.0230667	2.13	0.033 *
Ideology	0.0033504	0.0000523	64.07	<2e-16 ***
Mood	0.0049016	0.0003704	13.23	<2e-16 ***

Signif. codes: 0 '***' 0.001 '**' 0.01 '*' 0.05 '.' 0.1 ' ' 1

Residual standard error: 0.485 on 84105 degrees of freedom
(199 observations deleted due to missingness)

Multiple R-squared: 0.0553, Adjusted R-squared: 0.0553

F-statistic: 2.46e+03 on 2 and 84105 DF, p-value: <2e-16

Affirmances and Reversals

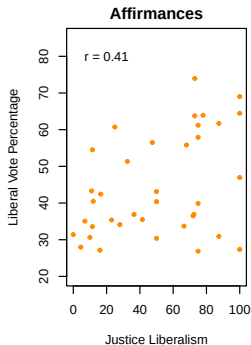
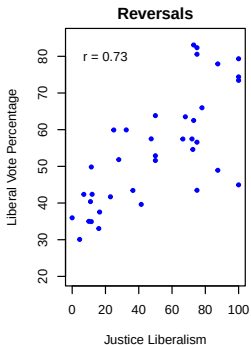
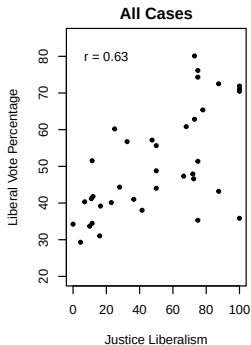
...they're not the same:

- Reversals are ideologically different than affirmances, because of litigant behavior:

The decisions to affirm lower court rulings, that is, not only totally fail to indicate the Court's ideology, they very weakly indicate its opposite, painting a conservative Court when it is liberal and a liberal Court when it is conservative." (McGuire and Stimson 2004, 1025-26).

- Affirmances generally result in less ability to "make policy" than reversals do.
- Suggests that separate analyses may be in order...

Liberalism and Voting, by Decision Type



Regression Results

	<i>Dependent Variable: Liberal Voting</i>		
	All Cases	Reversals	Affirmances
Justice Liberalism	0.003*** (0.0001)	0.004*** (0.0001)	0.003*** (0.0001)
Public Mood	0.005*** (0.0004)	0.009*** (0.0005)	-0.003*** (0.001)
Constant	0.049** (0.023)	-0.204*** (0.028)	0.542*** (0.040)
<i>N</i>	84,108	55,192	28,907
<i>R</i> ²	0.055	0.077	0.028
Adjusted <i>R</i> ²	0.055	0.077	0.028
Residual Std. Error	0.485	0.478	0.492
F Statistic	2,461***	2,298***	419***

Note:

* $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$

SCOTUS and Public Opinion: Abortion

Key Points:

- Abortion is a highly salient / high-profile issue
- ...on which public opinion has long been both strongly held and strongly divided
- Public opinion also matters for the acceptance of a decision, its implementation, and (potentially) the Court's legitimacy...

Focus on SCOTUS cases involving abortion:

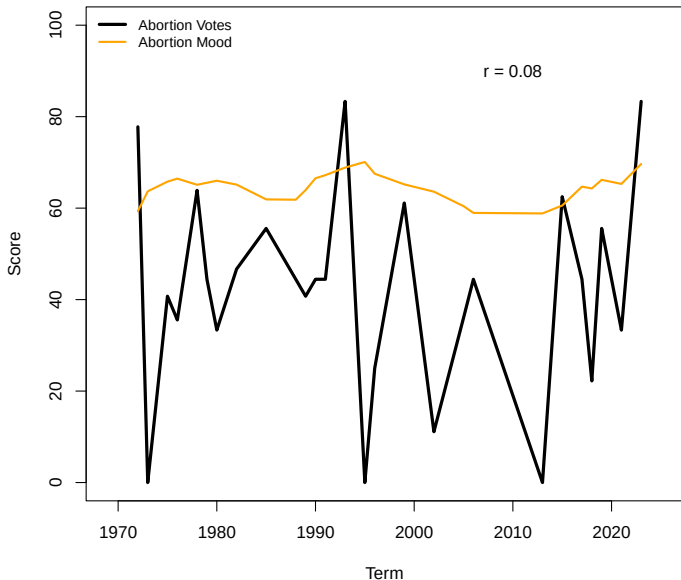
- $N = 64$ cases (1970-present)
- Total of 553 votes

```
> AbDF<-DF[DF$issue==50020,] # select abortion cases only
```

```
> describe(AbDF[v])
```

	vars	n	mean	sd	median	trimmed	mad	min	max	range	skew	kurtosis	se
Mood	1	553	62.19	4.13	62.9	62.18	4.16	53.9	69.1	15.2	-0.01	-0.98	0.18
AbMood	2	539	65.03	2.79	65.3	65.18	1.83	58.8	70.1	11.2	-0.62	0.03	0.12
LibVote	3	553	0.46	0.50	0.0	0.46	0.00	0.0	1.0	1.0	0.14	-1.98	0.02
Ideology	4	549	37.45	31.62	25.0	34.08	24.46	0.0	100.0	100.0	0.78	-0.67	1.35
Reversal	5	553	0.61	0.49	1.0	0.64	0.00	0.0	1.0	1.0	-0.46	-1.79	0.02

Abortion Mood and Voting, 1970-2024



Regression Results: Abortion

<i>Dependent variable: Abortion Liberalism</i>			
	All Cases	Reversals	Affirmances
Justice Liberalism	0.005*** (0.001)	0.005*** (0.001)	0.005*** (0.001)
Abortion Mood	0.013*** (0.005)	0.022*** (0.007)	-0.004 (0.007)
Constant	-0.532* (0.308)	-1.120*** (0.418)	0.613 (0.467)
<i>N</i>	549	337	212
<i>R</i> ²	0.110	0.131	0.096
Adjusted <i>R</i> ²	0.107	0.126	0.088
Residual Std. Error	0.472	0.459	0.476
F Statistic	33.8***	25.3***	11.1***

Note:

* $p < 0.1$; ** $p < 0.05$; *** $p < 0.01$

Summary of Findings

Across all cases:

1. Holding justices' ideology constant, we find a positive relationship between general public opinion liberalism (*public mood*) and the liberalism of justices' votes.
2. That relationship is stronger in cases where the justices reverse the decision of the lower court, and weaker (and, in fact, negative) in cases where the justices vote to affirm the lower court.
3. Holding ideology constant, a three-unit ($\approx$ one standard deviation) increase in *Public Mood* is associated with an increase in the probability of a liberal vote of **0.015** in all cases; the corresponding increase in reversals is **0.027**, while in affirmances it is associated with a decrease of **-0.01**.

In cases involving abortion rights:

1. Holding justices' ideology constant, we find a positive relationship between abortion-specific public opinion liberalism (*abortion mood*) and the liberalism of justices' votes in all cases.
2. That relationship is once again stronger in cases where the justices reverse the decision of the lower court, and weaker (and, again, negative) in cases where the justices vote to affirm the lower court.
3. Holding ideology constant, a three-unit ($\approx$ one standard deviation) increase in *Abortion Mood* is associated with an increase in the probability of a liberal vote of **0.04** in all cases; the corresponding increase in reversals is **0.066**, while in affirmances the effect is small and statistically insignificant.